



SUPREME COURT OF GEORGIA
Case No. S25U0847

June 9, 2025

The Honorable Supreme Court met pursuant to adjournment.

The following order was passed:

IN RE: MOTION TO AMEND 2025-7.

The Court having considered the 2025-7 Motion to Amend the Rules and Regulations for the Organization and Government of the State Bar of Georgia, it is ordered that the following rule be amended, effective July 10, 2025: Part X – Clients’ Security Fund, Rule 10-106 (Eligible Claims).

The amended rule will read as follows:

**PART X
CLIENTS’ SECURITY FUND**

. . .

Rule 10-106. Eligible Claims

(a) The loss must be caused by the dishonest conduct of the lawyer and shall have arisen out of and because of a lawyer-client relationship, or a fiduciary relationship, between the lawyer and the claimant.

(b) As used in these Rules, “dishonest conduct” means wrongful acts committed by a lawyer such as theft or embezzlement

of money or the wrongful taking or conversion of money, property or other things of value.

(c) There must be a final disposition resulting in indefinite suspension, disbarment, voluntary surrender of license, or other circumstances such as the death or disability of the lawyer or after a diligent search, the lawyer cannot be located.

(d) The claim shall be filed no later than two years after the date of final disciplinary action by the Supreme Court of Georgia. If disciplinary action cannot be prosecuted because the lawyer is either deceased, disabled or cannot be located, the claim shall be filed no later than five years after the applicant discovered the dishonest conduct; provided, however, the claim shall be filed no later than seven years after the dishonest conduct occurred.

(e) Except as provided by part (f) of this Rule, the following losses shall not be reimbursable:

(1) losses incurred by spouses, children, parents, grandparents, siblings, partners, associates, and employees of lawyer(s) causing the losses;

(2) losses covered by any bond, surety agreement, or insurance contract to the extent covered thereby, including any loss to which any bonding agent, surety, or insurer is subrogated, to the extent of that subrogated interest;

(3) losses incurred by any financial institution, which are recoverable under a “banker’s blanket bond” or similar commonly available insurance or surety contract;

(4) losses incurred by any business entity controlled by the lawyer, or any person or entity described in part (e) (1) hereof;

(5) losses incurred by any governmental entity or agency; and

(6) losses incurred by corporations or partnerships, including general or limited.

(f) In cases of extreme hardship or special and unusual circumstances, the Board may, at its discretion, recognize a claim that otherwise would be excluded under these Rules to achieve the purpose of the Fund.

(g) In cases where it appears that there will be unjust enrichment or the claimant unreasonably or knowingly contributed to the loss, the Board, at its discretion, may deny the claim.

(h) The Board shall require the applicant to exhaust his or her civil remedies unless the Board determines that pursuing the civil claim is not feasible or practical.

SUPREME COURT OF THE STATE OF GEORGIA

Clerk's Office, Atlanta

I certify that the above is a true extract from the minutes of the Supreme Court of Georgia.

Witness my signature and the seal of said court hereto affixed the day and year last above written.

 , Clerk